

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2104334

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: MARICOPA MEADOWS
HOMEOWNERS ASSOCIATION

vs.

DEFENDANT: EDWARD L. SPENCER, ET
AL

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

This is the third motion of Plaintiff Maricopa Meadows Homeowners Association for an award of attorneys’ fees and costs in connection with enforcement of a judgment. Plaintiff has not demonstrated that the attorney time, some of which dates back to 2024, was necessary for enforcement of the judgment. The motion is therefore **DENIED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001962

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SEAN ALEXANDER, ET
AL

vs.

DEFENDANT: D'ERRICA PERRYMAN,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: PREFERENCE

RULING

The motion for trial preference by plaintiff Ursula Goldstone ("Plaintiff") is **GRANTED**. (Code Civ. Proc., § 36, subds. (a), (e).) Plaintiff is over 70 years of age, she has a substantial interest in this action as a whole, and her health is such that a preference is necessary to prevent prejudice to her interest in the litigation. (Code Civ. Proc., § 36, subd. (a); *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) In the alternative, the Court finds that the interests of justice will be served by granting this preference. (Code Civ. Proc., § 36, subd. (e).)

All parties are ordered to appear on **September 15, 2026, at 1:30 p.m. in Courtroom A** for a trial-setting and case management conference, at which time the Court will set the preferential trial date for the action as a whole consistent with this Order. The Court will also address the scheduling of remaining discovery, expert disclosure, dispositive motions, and Plaintiffs' pending motion for leave to file a Fourth Amended Complaint. Nothing in this Order shall extend the trial date beyond the period prescribed by Code of Civil Procedure section 36, subdivision (f).

Background

This is a wrongful eviction action brought by thirteen named plaintiffs arising out of alleged habitability conditions at a residential property. Plaintiff is a 95-year-old named plaintiff (date of birth July 24, 1930) who is enrolled in in-home hospice care through Madrona Hospice Care, Inc. Plaintiffs commenced this action on February 1, 2024, and trial is presently set for January 7, 2027.

Plaintiff filed the present motion seeking mandatory trial preference under Code of Civil Procedure section 36, subdivision (a), an order setting trial within 120 days, and case management directives to effectuate the preference. Defendants Tottenham Investments, Inc. and